

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA**

PRC APPEAL No.49/2025

M/S Ashfaq & Brothers
Through its Proprietor
Sajjad Ahmed s/o Munir Ahmed
Resident of District Washuk

... Appellant

Versus

1. Executive Engineer (Building), C&W Department, Washuk
2. Chief Engineer (Building) / Chairman GRC, C&W Department, Quetta
3. Deputy Commissioner, District Washuk / Chairman BSDI Project Washuk
4. M/S Haji Faisal Reki Construction Company, Washuk

QUORUM OF THE COMMITTEE

1. Habib-ur-Rehman Jamot.....Chairman, PRC
2. Mubashir Ali Khan (FCIPS).....Member, PRC
3. Engr. Junaid Shah.....Member, PRC
4. Engr. Muhammad Ayub Nasir.....Retd. Chief Engineer / Technical Member
5. Syed Muheebullah.....Advocate / Private Member

... Respondents

BRIEF FACTS

1. The Respondent, Executive Engineer (Building), Communications & Works (C&W) Department, Washuk, invited bids under Tender Serial No. 2526109031103 for the "Construction of 2 Additional Rooms in RHC Salambalk, District Washuk" with an Approved Estimated Cost of PKR 14,851,237/-, adopting the Single Stage Two Envelope (SSTE) Procedure under the Least Cost Selection Method.
2. The Appellant claims to have submitted both its Technical and Financial Proposals within the stipulated time and manner.
3. The Appellant was subsequently declared disqualified on the sole ground of non-submission of the Financial Proposal.
4. Aggrieved, the Appellant approached the Grievance Redressal Committee, which failed to redress the grievance, prompting the present appeal under Rule 56-A of the Balochistan Public Procurement Rules (BPPR), 2014.

PRAYER

The Appellant prays that this Committee may:

- (a) Declare the impugned disqualification as illegal and arbitrary;
- (b) Set aside the defective evaluation; and
- (c) Direct a lawful re-evaluation of its bid.

FINDINGS OF THE COMMITTEE

1. The Committee has heard the parties and perused the record, including the bid opening minutes and the evaluation report.
2. The adopted Single Stage Two Envelope procedure, as mandated by Rule 41(3) of the BPP Rules, explicitly requires bids to consist of a single package containing two separate, clearly marked envelopes, with only the "Technical Proposal" opened initially and the "Financial Proposal" retained unopened in the agency's custody.
3. The Respondent's defense that Appellant's single package did not contain a Financial Proposal envelope is logically and procedurally indefensible. For the Bid Opening Committee to know the contents of the unopened Financial Proposal envelope, it would have had to violate Rule 41(3)(d). The Committee finds no evidence of such a violation in the minutes.
4. Furthermore, the Respondent failed to discharge its fundamental duty of immediate communication. If a bid was found physically incomplete at the time of receipt (before opening), this grave deficiency must be recorded and communicated to the bidder at once, not discovered later during evaluation. The Respondent's failure to do so vitiates the entire disqualification.
5. Therefore, the Committee finds the Respondent's stance legally untenable and factually suspect. The disqualification of the Appellant was based on a premise that contradicts the mandated bidding procedure and lacks any evidence in the available record.

DECISION

For the reasons stated above, the Appeal is **ALLOWED**.

The disqualification of the Appellant and the corresponding Technical Evaluation Report are hereby **SET ASIDE**.

The matter is **REMANDED** to the Procuring Agency with the following binding directions:

- (a) The Procuring Agency shall, within five (5) days from the date of this order, retrieve the Appellant's original bid package and verify the presence of the sealed "FINANCIAL PROPOSAL" envelope in the presence of a representative of the Appellant, if possible, and record the process.
- (b) Thereafter, it shall conduct a fresh evaluation of the Appellant's bid in strict compliance with Rule 35(1) of the BPP Rules.
- (c) A revised Evaluation Report shall be issued and uploaded on the ePPS within fifteen (15) days of receipt of this order.

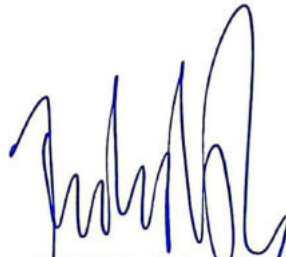
(d) The process shall proceed to award the contract to the lowest evaluated bidder in accordance with BPP Rules 35 & 48.

The Head of the Department shall be responsible for ensuring compliance. A copy of this order is to be sent to the Secretary, C&W Department, for information and necessary oversight.

The Registrar is directed to communicate certified copies of this order to all parties for immediate compliance.

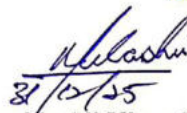
Ordered accordingly.

Announced on this 31st day of December 2025.



Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)



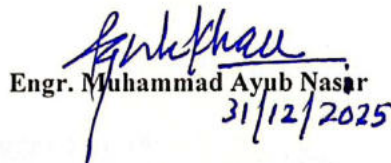
Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA



Engr. Muhammad Ayub Nasir

Member
Procurement Review Committee
BPPRA



Syed Muheebullah, Advocate

Member
Procurement Review Committee
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